



DEPARTMENT OF PERSONNEL AND ADMINISTRATION

Division of Risk Management

RULES AND REGULATIONS OF THE STATE CLAIMS BOARD

1 CCR 105-2

[Editor's Notes follow the text of the rules at the end of this CCR Document.]

CHAPTER 1. GENERAL PROVISIONS

- 1.1. Statutory reference. A state claims board was created in section 24-30-1508, C.R.S. (1985) of the Risk Management Act.
- 1.2. Basis and Purpose. The Claims Board consists of 3 members, the executive director of the Department of Administration, state treasurer, and attorney general. It has statutory authority to oversee the management of the Risk Management Fund (the fund), to compromise or settle claims between \$100,000 and the maximum allowed under the Governmental Immunity Act, sections 24-10-101 to 118, C.R.S. (1973), and to adopt organizational and procedural rules.

These rules and the 1987 amendments are adopted pursuant to the statutory authority for the purpose of implementing the Act and establishing an efficient system of claims processing.
- 1.3. Applicability. These rules apply to the operations and functions of the State Claims Board; to claims and suits against the state between \$100,000 and the maximum recoverable under the Immunity Act; to the Risk Management Division and the Risk Management Fund.
- 1.4. All correspondence or other documents permitted to be submitted to the board shall be addressed to: Board of Claims, Risk Management Division, Department of Administration, 1525 Sherman Street, Denver, Colorado 80203.

CHAPTER 2. DEFINITIONS

- 2.1. The definitions stated in the Risk Management Act, sections 24-30-15-1 to 1518, C.R.S. (1985), apply to these rules.
- 2.2. Fund shall mean the Risk Management Fund created by section 24-30-1510, C.R.S. (1985).
- 2.3. Settlement shall mean an agreement to satisfy a claim which is accompanied by release documents as required by these rules and provision for payment, if any. Authorized to settle means authorization to direct payment.

CHAPTER 3. PROCEDURAL RULES.

- 3.1. The board shall hold meetings when deemed necessary by a majority of the board. At its first meeting each fiscal year, the board shall select a chairperson.
- 3.2. Notice shall be provided to board members as reasonably in advance of any meeting as circumstances permit.
- 3.3. Decisions of the board shall be made by a majority of the board. A quorum is two members.

- 3.4. A tie on any significant item of business shall constitute rejection of the proposed action.
- 3.5. Meetings of the board are public. The public may attend but not participate in such meetings.
Meetings may be closed pursuant to the open meetings law for discussions of matters regarding settlement of claims and litigation.
- 3.6. Writings made, maintained or kept by the board for use in exercising its official board functions required or authorized by law or involving expenditures of public funds are public records except for writings pertaining to settlement negotiations of claims and lawsuits against the state.
- 3.7. For purposes of filing its annual report with the general assembly and effectuating its statutory duties, the board may at any time initiate a review of any matter relating to the fund or request status reports from the risk manager on payments made from the fund and on risk management programs.
- 3.8. The board may seek the assistance of the insurance commissioner as it determines necessary to carry out its functions.

Editor's Notes

History